LIMITED LIABILITY COMPANY AGREEMENT

This LIMITED LIABILITY COMPANY AGREEMENT ("Agreement") of EM LAMBERTON GP, LLC, a California limited liability company ("Company"), is made and entered into as of October 30, 2017, by and between the parties identified on Exhibit A attached hereto (individually, each a "Member" and collectively, the "Members"). The Company was formed as a limited liability company under the LLC Act for the purpose of: (a) acquiring fee simple title to a specific property located at 4825 West 18th Street, Los Angeles, CA 90019 ("Property") by way of ownership of fifty percent of the [Class A shares] of Bedrock MHC, LLC ("PropCo"); (b) assist with the development, management operation and financing of the Property; and (c) engaging in any other business activities permitted by the LLC Act (as defined below). In consideration of the mutual promises hereinafter set forth, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties intending to be legally bound, agree to the terms as set forth below.

1.1 Definitions. As used in this Agreement, the following terms shall have the respective meanings set forth below, which meanings shall be applicable equally to the singular and plural of the terms defined:

"Affiliate" of a Person shall mean (i) any other Person that directly or indirectly through one or more intermediaries, controls, is controlled by or is under common control with, such Person, (ii) any other Person owning or controlling twenty-five percent (25%) or more of the outstanding voting securities of such Person and (iii) any executive officer, director or partner of such Person, (including any other Person for which any such executive officer, director or partner acts in any such capacity). With respect to a Person that is an individual, the term "Affiliate" shall also include (a) such Person's spouse, siblings, parents or children, (b) any entity controlled by or under common control with such Person and/or Person's spouse, siblings, parents or children, (c) a trust exclusively for the benefit of any such family members, (d) another entity owned and controlled directly or indirectly by such family members or trust and (e) upon the death of a Person, the executor of such Person's estate. For purposes of this definition, the terms "control," "controlling" or "controlled by" mean the power to direct the business and affairs of an entity, whether through the ownership of voting securities, by contract or otherwise.

"Agreement" shall mean this Agreement and any amendments hereof or modifications hereto effected in accordance with the terms hereof.

"Articles" shall mean the Articles of Organization of the Company which were filed with the Delaware Secretary of State on October 23, 2017, as the same may be amended or restated from time to time in accordance with the terms hereof.

"Available Cash" means cash distributions received by the Company from the Property, net of payments of customary Company operating expenses and reasonable reserves and amounts due under the Senior Loan.

"Bad Acts" means (i) the commitment of fraud, misappropriation or misapplication of funds or other personal property, (ii) filing for bankruptcy, (iii) the conviction of a felony criminal act, or (iv) any transfers in violation of this Agreement or obligations under any lending agreement related to the Property.

"Business Day" means a day other than Saturday or Sunday or a day of the year on which banks are not required or authorized by law to close in the City of New York, NY.

"Capital Account" when used with respect to any Member shall mean the Capital Account maintained for such Member in accordance with Section 7.2, as said Capital Account may be increased or decreased from time to time.

"Capital Contributions" when used with respect to any Member shall mean the aggregate amount of cash contributed by such Member to the Company pursuant to Section 6.

"Claim" means any obligation, liability, claim (including any claim for damage to property or injury to or death of any persons), lien or encumbrance, loss, damage, cost or expense (including any judgment, award, settlement, reasonable attorneys' fees and other costs and expenses incurred in connection with the defense of any actual or threatened action, proceeding or claim (including appellate proceedings), and any collection costs or enforcement costs).

"Closing Date" shall mean the date on which the Company's acquisition of the Property is consummated.

"Code" shall mean the Internal Revenue Code of 1986, as amended, or any corresponding provision(s) of succeeding law.

"Depreciation" means, for each Fiscal Year or other period, an amount equal to the depreciation, amortization or other cost recovery deduction allowable with respect to an asset for such year or other period for federal income tax purposes, except that if the Gross Asset Value of an asset differs from its adjusted basis for federal income tax purposes at the beginning of such year or other period, Depreciation shall be an amount which bears the same ratio to such beginning Gross Asset Value as the federal income tax depreciation, amortization or other cost recovery deduction for such year or other period bears to such beginning adjusted tax basis; provided, however, that if the federal income tax depreciation, amortization or other cost recovery deduction for such year is zero, Depreciation shall be determined with reference to such beginning Gross Asset Value using any reasonable method selected by the Manager. With respect to any asset of the Company for which depreciation is calculated in accordance with Treas. Reg. § 1.704-3(d), Depreciation shall be calculated in the same manner.

"Fiscal Year" shall mean the period beginning on the date on which the Company was formed and ending on December 31, 2017, each successive twelve-month period (beginning on January 1st and ending on December 31st) and, for the year in which the Company is terminated, the period from the first day following the end of the last preceding Fiscal Year (January 1st) to, and including, the date of such termination.

"Gross Asset Value" means, with respect to any asset of the Company, the asset's adjusted basis for federal income tax purposes, except as follows. The initial Gross Asset Value of any asset contributed by a Member to the Company shall be the fair market value of such asset. Upon the distribution in kind of any Company asset, the Gross Asset Value of such asset shall be adjusted immediately prior to such distribution to equal its fair market value. To the extent that the Manager determines that such adjustment is necessary or appropriate to reflect the relative economic interests of the Members in the Company, the Gross Asset Value of all Company assets shall be adjusted to equal their respective fair market values as of the following times: (1) upon the acquisition of any interest in the Company by a new Member or an additional interest by an existing Member in exchange for more than a de minimis capital contribution; and (2) upon the distribution by the Company to a Member of more than a de minimis amount of property as consideration for an interest in the Company. If the Gross Asset Value of an asset has been determined or adjusted in accordance with paragraphs (i), (ii) or (iii) of this definition of Gross Asset Value, such Gross Asset Value shall thereafter be adjusted by the Depreciation taken into account with respect to such asset for purposes of computing Profits or Losses.

"IRS" shall mean the Internal Revenue Service or any successor agency or authority responsible for enforcing the Code.

"LLC Act" shall mean the Delaware Limited Liability Company Act, Title, 6, Chapter 18, §§ 18-101, *et seq*, and any successor statute, as it may be amended from time to time.

"Majority Members" means Members having an aggregate Percentage Interest of not less than fifty-one percent (51%).

"Majority Vote," with respect to any issue, act or decision, shall mean an affirmative vote of those Members who hold a Percentage Interest, in the aggregate, equal to more than fifty-one percent (51%) and are then eligible to vote under this Agreement.

"Manager" shall collectively mean Charles Clinton and Marious Sjulsen or any successor Manager selected as provided in Section 3.1. The Members hereby acknowledge that Manager is or may be an Affiliate of a Member or the Company

"Member" and "Members" shall have the meaning set forth in the first paragraph of this Agreement as the same may be amended and/or reflected on the Company's books and records.

"Membership Interest" shall mean the entire membership interest of a Member in the Company at any particular time, including such Member's (i) interest in the Company's Profits, Losses and items of income, gain, loss and deduction and distributions by the Company; (ii) right to any and all benefits to which a Member may be entitled as provided in this Agreement or under the LLC Act, including the right to vote; and (iii) obligations to comply with all of the terms and provisions of this Agreement and all applicable provisions of the LLC Act.

"Net Proceeds" means proceeds from refinance or sale of the Property received by the Company, net of payments of customary Company operating expenses, reasonable reserves and amounts due under the Senior Loan.

"Percentage Interest" shall mean, with respect to each Member, the percentage interest of such Member in the Company as set forth on Exhibit A, as such Exhibit may be amended from time to time. The aggregate of all Percentage Interests shall be one-hundred percent (100%) at all times.

"Person" shall mean any individual (natural person), association, partnership, limited liability company, corporation, trust or other entity.

"Property" shall have the meaning set forth in the initial paragraph of the Agreement.

"Regulations" shall mean the Treasury regulations promulgated under the Code (including temporary or proposed regulations), as such regulations may be amended from time to time (including corresponding provisions of any succeeding regulations).

"Taxable Year" shall mean the Fiscal Year or such other taxable year required by the Code and Regulations.

"Tax Matters Partner" shall collectively mean Charles Clinton and Marious Sjulsen.

"Unreturned Capital" with respect to a Member shall mean such Member's Capital Contributions, reduced (but not below zero) by any and all returns of capital pursuant to Section 8.1.

2.1 The Company And Its Business. The Company was organized on October 23, 2017, and shall have a perpetual existence, unless the Company is sooner dissolved and its affairs wound up in accordance with the LLC Act or as hereinafter provided. The Articles were filed with the Department of State of the State of Delaware on October 23, 2017. The Members hereby agree to execute and file any required amendments to the Articles requested by the Manager and to do all other acts requisite for the continuation of the Company as a limited liability company pursuant to the laws of the State of Delaware or any other applicable law. The Company shall have the power and authority to take any and all actions necessary, appropriate, proper, advisable, convenient or incidental to or for the furtherance of the purpose set forth in this Agreement. The Company shall (i) maintain its bank accounts separate from the bank account(s) of any other Person; (ii) not buy or hold any evidence of indebtedness issued by any Person which is a Member or an Affiliate of the Company or of a Member (other than investment-grade securities) unless otherwise provided for herein; (iii) correct any known misunderstanding regarding its separate identity; (iv) not identify itself as a division of any other Person; and (v) maintain its assets in such a manner that it would not be costly or difficult to segregate, ascertain or identify its assets from those of any other Person. The principal office of the Company shall be located at 41 Madison Ave, Flr 35, New York, NY 10010. The registered agent of the Company for service of process in the State of Delaware and the registered office of the Company in the State of Delaware shall be that Person and location reflected in the Articles.

3.1 The Manager. The Company shall at all times be managed by a manager (the "Manager") who may or may not be a Member. If there is more than one Manager, all decisions of the Manager shall be unanimous. The Members hereby agree that the Manager shall collectively be Charles Clinton and Marious Sjulsen. Any subsequent Manager shall be selected by the Members by a Majority Vote.

3.2 Powers of the Manager. The Manager shall (a) have the exclusive right, power and authority to conduct the business and affairs of the Company and to make all tax elections on behalf of the Company, and (b) take all actions which may be necessary or appropriate, in the Manager's determination, for the development, maintenance, preservation and operation of the properties and assets of the Company in accordance with the provisions of this Agreement and any applicable laws and regulations. Unless otherwise provided herein, Members hereby waive any and all rights it may have to participate in the management, control and affairs of the Company to the fullest extent permitted by law.

3.3 No Liability; Indemnification of the Manager. Except as otherwise provided herein, the Manager shall not be liable, responsible or accountable in damages or otherwise to the Company or to any Member for the Manager's performance of, or failure to perform, any act or omission based upon its reasonable reliance on the advice of legal counsel or accountants to the Company, or the negligence, dishonesty or bad faith of any agent, consultant or broker of the Company selected, engaged or retained in good faith and with reasonable prudence or based upon its reasonable reliance that such acts or omissions were within the scope of the authority conferred on the Manager by this Agreement, except in the case of the Manager's gross negligence, willful misconduct or Bad Acts. In any threatened, pending or completed action, suit or proceeding, the Manager shall be fully protected and indemnified and held harmless by the Company against all liabilities, obligations, losses, damages, penalties, actions, judgments, suits, proceedings, costs, expenses and disbursements of any kind or nature whatsoever (including, without limitation, attorneys' fees, costs of investigation, fines, judgments and amounts paid in settlement) actually incurred by the Manager in connection with such action, suit or proceeding by virtue of its status as Manager or with respect to any action or omission taken or suffered, other than liabilities and losses resulting from the gross negligence or willful misconduct of the Manager.

3.4.1 Major Decisions; Restrictions on Authority of Manager.

The Manager shall not have the authority to, and hereby covenants and agrees that it shall not make or perform any of the following Major Decisions (as defined below) without first having obtained the affirmative vote of a majority of all the Members: (a) cause or permit the Company to engage in any activity that is not consistent with the purposes of the Company; (b) file a lawsuit on behalf of the Company or confess a judgment against the Company in an amount in excess of insurance proceeds; (c) pay, collect, compromise, arbitrate or otherwise adjust any and all claims or demands of or against the Company or the Property outside the normal course of

business; (d) knowingly perform any act that would subject any Members to liability as a general partner in any jurisdiction; (e) cause the Company to voluntarily take any action that would cause a bankruptcy of the Company; (f) issue, create or authorize for issuance any equity securities (including units, securities convertible into or exchangeable for any units in other equity securities and equity securities issued in connection with any debt securities), with rights or preferences as to distributions senior to the existing and outstanding units, or reclassify any existing securities into equity securities with rights or preferences as to distributions senior to the existing and outstanding units, by means of amendment to this Agreement or by merger, consolidation, operation of law or otherwise; (g) change the tax status of the Company; and (i) alter the Percentage Interests of the Members (collectively, the "Major Decisions").

The Members shall have the authority to vote on the matters provided in this Section and specifically provided elsewhere in this Agreement.

3.4.2 Removal Process; Notice to Perform.

Prior to initiating a removal action per this Section for Good Cause, the Majority Members shall issue a notice to perform to the Manager in accordance with the notice provision hereof (the "Notice to Perform"). The Notice to Perform shall describe the matters of concern to the Members and shall give the Manager up to sixty (60) days to correct the matter of concern to the satisfaction of the Members. If the Manager fails to respond to the concerns or demands contained in such Notice to Perform then;

The Manager may be immediately removed, temporarily or permanently, for "Good Cause."

The Members agree that in the event Manager is removed pursuant to this Section 3, the Members shall immediately amend Section 8.1(c)(i) of this Agreement to remove any reference to Charles Clinton and Marious Sjulsen and replace such reference with the new applicable party.

3.4.3 Reasons for Removal; Good Cause Defined.

The Members hereby agree that any right of removal shall be exercised only in good faith. "Good Cause" shall include only the following, as determined by a vote of the requisite Percentage Interests described above for Bad Acts or for the reasons below:

a. Death or disability wherein the Manager (or any of the members of the Manager with authority to Manage the Company) dies or becomes physically, mentally, or legally incapacitated such that it can no longer effectively function as the Manager of the Company or the dissolution, liquidation or termination of any entity serving as the Manager and no other member, officer or director of the Manager is willing or able to effectively perform the Manager's duties;

b. Disappearance wherein the Manager (or each of the members of the Manager) fail to return phone calls and/or written correspondence for more than sixty days (60) without prior notice of an anticipated absence, or failure to provide the Members with new contact information;

c. Issuance of a legal charging order and/or judgment by any judgment creditor against the Manager's interest in cash distributions or Fees (as defined below) from the Company;

d. A finding by a court of law or arbitrator that the Manager committed any of the acts described in Article 3.3, for which the Manager is specifically not indemnified by the Company; or

e. The Manager becomes subject to a "disqualifying event" at any time during operation of the Company.

3.4.4. Removal Notice Requirements. Notice of the Manager's removal shall be provided in a removal notice, duly executed by the requisite votes (the "Removal Notice"). The Removal Notice shall be sent via express or overnight delivery to the removed Manager's record place of business. The Removal Notice shall designate the newly appointed manager who shall succeed the removed Manager, and/or a Member to whom the removed Manager must convey all documents and things necessary to continue management of the Company.

Within fifteen (15) business days of such Removal Notice, or such reasonable extension as the removed Manager shall request (which shall in no case exceed thirty (30) calendar days), the removed Manager shall voluntarily surrender all documents, books, records, bank accounts, and things (collectively "Documents and Things") related to management of the Company to the newly appointed Manager or designated Member. If the removed Manager fails to voluntarily comply with this Article, the Company may seek reimbursement for any costs associated with obtaining such Documents and Things from the removed Manager or re-creating them, by deducting the costs,

including reasonable attorney's fees and other necessary costs of collection (on production of receipts therefore) or forensic reconstruction, from any distributable cash or Fees the removed Manager may otherwise be entitled to collect as described herein.

3.4.5. Removal of an Affiliated Property Manager. If the Manager is removed for Good Cause, any Affiliate of the Manager then-acting as the Property Manager may be concurrently removed, if the Property Manager is also specified in the Notice to Perform and Notice of Removal provided by the Members. Removal of any Affiliated Property Manager, if included, shall take effect concurrent with the effective date of removal of the Manager. If the Affiliated Property Manager is not specified in the Notice to Perform and Notice of Removal, or if the Property Manager is not Affiliated with the Manager, its removal, if desired, must be performed pursuant to the terms of any contract between the Property Manager and the Company.

3.4.6. Consultation; Quarterly Reports. The Manager agrees to use its commercially reasonable efforts at all times to keep the Members advised of material matters affecting the Company, to provide quarterly reports and Property level financials to the Members within thirty (30) days of the end of each quarter and if such reports are requested by the applicable Member in writing and to provide additional updates on an as needed basis. Failure to provide such reporting shall constitute a material breach of this Agreement. Further, the Manager will be available for questions during normal business hours.

4.1 Members. The names and addresses of the Members shall be as set forth on the books and records of the Company and Exhibit A, as may be amended from time to time in accordance with this Agreement.

(a) Admission of Additional Members. Subject to the provisions of Section 9, no additional Member shall be admitted to the Company without the prior approval of the Majority Members. In the event that a new member is admitted, there shall be no retroactive allocation of Profits and/or Losses pursuant to Section 7.

(b) Representations by the Members. Each Member represents, warrants, agrees and acknowledges to each other Member the following: (i) it has all requisite power and authority to enter into this Agreement, to purchase and hold its Membership Interest and to execute and deliver this Agreement and all other instruments executed and delivered on behalf of it in connection with the acquisition of its Membership Interest; (ii) its execution and delivery of this Agreement and the performance of its obligations hereunder will not conflict with, result in a breach of, or constitute a default (or any event that, with notice or lapse of time or both, would constitute a default) under, or result in the acceleration of any obligation under any of the terms, conditions or provisions of, any other agreement or instrument to which it is a party or by which it is bound or to which any of its property or assets are subject, violate any statute or any order, rule or regulation of any court or governmental or regulatory agency, body or official, that would materially and adversely affect the performance of its duties hereunder; (iii) no consent, approval, authorization or order of any court or governmental agency or body is required for the execution, delivery and performance by such Member of its obligations hereunder. (iv) there is no action, suit or proceeding pending against such Member or, to its knowledge, threatened in any court or by or before any other governmental agency or instrumentality which would prohibit its entering into or performing its obligations under this Agreement; (v) this Agreement is the binding agreement of such Member, enforceable in accordance with its terms against such Member except as enforceability may be limited by bankruptcy, insolvency, reorganization, moratorium and other similar laws affecting creditors' rights generally and by general principles of equity; (vi) such Member is acquiring its interest in the Company for investment purposes and without a view toward its resale or distribution; (vii) such Member is (a) sophisticated in business transactions; (b) has been granted access to such financial and other material information concerning the Company as it has requested or may require in connection with its investment in the Company; (c) is able, either directly or through its agents and representatives, to evaluate such information; and (d) is able to bear the financial risk of loss presented by an investment in the Company (which includes the risk of loss of such Member's entire investment), particularly in light of the risks that would be disclosed by a careful examination of any collateral agreements, if any, and the fact that the performance of the Company and its assets is subject to unpredictable values and governmental and other risks of regulation; (viii) such Member acknowledges that it has been advised that this Agreement has been prepared by Trowbridge and Sidoti, LLP. as counsel to EM LAMBERTON GP, LLC, which counsel may also serve as counsel to one or more of the Members and their Affiliates from time to time; and that such counsel has not otherwise been engaged to represent any of the other Members in connection with their execution of this Agreement; that the interests of the Members may be adverse to each other and/or to the Company; that each of the Members have been urged to engage independent counsel to review and advise such Member with respect to entering into this Agreement; and, by its signature below, each Member confirms to the Company, such counsel and to the other Members that it has either obtained such independent counsel with respect to this Agreement and its interest in the Company as it requires in order to make an informed decision to become a Member or has elected, in its sole and absolute discretion, not to obtain such independent counsel; (ix) such Member is aware that Transfers of interests in the Company and within such Member are not permitted except in the limited circumstances expressly provided in Section 9 hereof and that an investment in the Company is a long-term investment, without liquidity; (x) such Member is not relying upon any of the other Members, or any of their Affiliates in connection with such Member's decision with respect to any of the matters referred to in this Agreement, including any projections, information, due diligence, representations, statements or other matters concerning the Company or otherwise; (xi) none of the other Members, solely in their capacity as

Members, are acting as the representative or agent or in any other capacity, fiduciary or otherwise, on behalf of such Member in connection with the Company or the other matters referred to in this Agreement; (xii) none of the other Members nor any of the other Members' agents or representatives has made any representations, warranties, projections or assurances to such Member with respect to the Company, any investment herein or therein, the safety or the risks involved and/or the tax or economic consequences thereof; and such Member hereby acknowledges that any or all of the Company's activities may be modified, abandoned or terminated at any time upon the approval by the Manager, with or without reason notwithstanding anything in this Agreement to the contrary; (xiii) such Member is aware that the other Members and/or their Affiliates now and in the future will be, and in the past have been, engaged in businesses which are competitive with that of the Company, as addressed in this Agreement; (xiv) such Member is aware that compensation and reimbursements may be paid to Affiliates of the Members and to Affiliates of partners, shareholders or members of the Members, as addressed in this Agreement; (xv) such Member understands that such Member's tax liability on the taxable income and gain allocated to such Member hereunder for any year may exceed the cash distributions from the Company to such Member for such year and such Member may have to look to sources other than distributions from the Company to pay any such tax liability or to make distributions or loans to its partners, shareholders or members to enable them to pay their taxes; (xvi) except as specifically provided in this Section 4.1(b), such Member is not relying upon any representation or warranty of any other Member, the Company or any of their respective Affiliates, express or implied, oral or written; (xvii) such Member understands that no Member is required to cause the controlling Persons of such Member to devote any specific portion of their time to Company business other than as necessary to fulfill such Member's obligations under this Agreement, and such controlling Persons expect to spend substantial amounts of their time on activities that are unrelated to the Company, as addressed in this Agreement; (xviii) such Member understands that the Company and its Members are relying on the accuracy of the representations set forth in this Section 4.1(b) in entering into this Agreement without requiring that the interests in the Company be registered under federal or state securities laws; and (xix) such Member is not composed of more than fifty (50) persons for purposes of Section 3(c)(1) of the Investment Company Act of 1940, as amended.

(c) Proceeds from Member Capital. The proceeds from Member's Capital Contribution shall be used to acquire the Property, buyout tenants, renovate individual units within the Property, and perform capital improvement on the Property. Proceeds shall not be used for any other purpose other than those expressed here in Article 4.1(c) without the express written permission of the Members.

4.2 Other Activities of the Members. Each Member and their beneficial owners may engage or invest in any other activity or venture or possess any interest therein independently or with others. None of the Members, the Company or any other Person employed by, related to or in any way affiliated with any Member or the Company shall have any duty or obligation to disclose or offer to the Company or the Members, or to obtain for the benefit of the Company or the Members, any such other activity or venture or interest therein. It is hereby acknowledged and accepted that affiliates of Charles Clinton and Marious Sjulsen are also investors in PropCo and that the interests of such affiliates may conflict with the interests of the Company.

4.3 Indemnities and Liability. The Company shall indemnify, defend and hold each Member harmless from and against any Claims suffered or sustained by it by reason of any acts, omissions or alleged acts or omissions by such Member on behalf of the Company which such Member reasonably believed to be within the scope of authority conferred on it by this Agreement, including, any judgment, award, settlement, reasonable attorneys' fees and other costs and expenses incurred in connection with the defense of any actual or threatened action, proceeding or claim; provided that the acts or omissions or alleged acts or omissions upon which such actual or threatened action, proceeding or claim is based did not constitute gross negligence or willful misconduct. Each Member shall indemnify, protect, defend and hold the Company, each other Member, and the Company property harmless from and against any and all Claims suffered or sustained by it by reason of any act or omission constituting (a) a knowing breach of any representation or warranty by such Member under this Agreement or any collateral agreement; (b) any other material breach or default by such Member under this Agreement or any collateral agreement; or (c) a breach of fiduciary duty, or tortious or willful misconduct by such Member. The Members shall not be bound by, nor be personally liable for, the expenses, liabilities, indebtedness or obligations of the Company. Except as otherwise provided herein, the obligations of the Members under this Agreement shall be non-recourse obligations, and no Member nor any Affiliate of any Member shall have any liability for or be subject to recourse against their assets with respect thereto. The liability of each Member shall be limited solely to the amount of its Capital Account, provided, to the extent required by the LLC Act, Members who have received returns in whole or in part of their Capital Contributions may be liable to the Company for any sum, not in excess of such returns, necessary to discharge the Company's liabilities to creditors who extended credit or whose claims arose before such return. Each Member shall be liable to the Company and the other Member for any damages arising from any breach of this Agreement. Except as otherwise provided in this Agreement, the liability of any Member shall be limited to such Member's interest in the Company.

4.4 Designation of Tax Matters Partner. Charles Clinton and Marious Sjulsen shall collectively act as the Tax Matters Partner of the Company, as provided in Section 6231 of the Code and the regulations promulgated thereunder. Each Member hereby approves of such designation and agrees to execute, certify, acknowledge, deliver, swear to, file and record at the appropriate public offices such documents as may be deemed necessary or appropriate to evidence such approval.

5.1 Books of Account. At all times during the continuance of the Company, the Company shall maintain its assets separate and apart from the assets of any other Person, and the Manager shall keep or cause to be kept true and complete books of account into which each transaction of the Company shall be entered fully and accurately. Such books shall be kept on the basis of the Fiscal Year in accordance with generally accepted accounting principles. The Manager shall send to each Person who was a Member at any time during such Fiscal Year, the following: (i) no later than March 15 following the end of each Taxable Year (or if an extension is requested by the Company from the IRS, then no later than the date which is the same number of days following March 31 of such Taxable Year as the number of days for which an extension is requested), a completed IRS Form K-l and such other information concerning the Company as is necessary for the preparation of each Member's federal, state and local income tax returns; (ii) no later than March 15 following the end of each Taxable Year (or if an extension is requested by the Company from the IRS, then no later than the date which is the same number of days following March 31 of such Taxable Year as the number of days for which an extension is requested), the most recent unaudited tax return certified by an officer of the Company; and (iii) no later than 30 days following the end of each calendar quarter, profit and loss statements. The Manager shall have no liability whatsoever to the Company or to any Member with respect to any report delivered pursuant to this Section 5.1 if the Manager prepared such report in good faith, and with the reasonable belief that the information contained therein was accurate and not materially misleading. Without limiting other circumstances establishing the Manager's good faith and reasonable belief, the Manager shall be deemed to have satisfied the foregoing conditions with respect to any report which it prepared upon consultation with, or upon the advice of, the Company's accountant.

6.1 Capital Contributions. Each Member shall have contributed or be deemed to have contributed, in immediately available funds, to the Company the amount set forth opposite its name as the "Initial Capital Contribution" on Exhibit A attached hereto. All Capital Contributions to the Company by the Members, whether on or before the date hereof pursuant to the terms of this Agreement, shall be added to each Member's Capital Account in accordance with the terms of this Agreement. Prior to any demands for additional Capital Contributions pursuant to this Section 6.1, Manager, shall first request that the Members provide, on a pro rata basis, any additional Capital Contributions as is necessary for the operation of the Company as a preferred loan at a ten percent (10%) annual return ("Preferred Loan"). If the Members elect to provide a Preferred Loan, it shall be repaid prior to any other distributions to the Members. Except as otherwise set forth in this Section 6.1 or elsewhere herein, no Member shall be obligated to (i) make additional Capital Contributions to the Company, or (ii) lend any money to the Company. Except as otherwise specifically provided in Section 7, no Member shall have the right to demand the return of any part of its Capital Contributions until the Company has been dissolved and terminated, or to demand or receive property other than cash in return for its Capital Contributions. If the Members choose to not fully fund a Preferred Loan request, the Manager may, in its reasonable discretion, issue notice ("Call Notice") requesting from all of the Members additional Capital Contributions, as is necessary for the operation of the Company, including the repayment of debt secured by the Property. Each Call Notice shall state the total amount of the additional Capital Contributions and each Member's share based on their current Percentage Interest. Upon Members receiving the Call Notice for additional Capital Contributions each Member that chooses to contribute are required to fund their pro rata portion based on Capital Contributions within fifteen (15) Business Days after the Call Notice is delivered by the Manager ("Fund Date"). If a Member chooses not to contribute their additional Capital Contribution or does not contribute their additional Capital Contribution within fifteen (15) Business Days ("Unpaid Contribution") after such additional Capital Contribution is due (the "Non-contributing Member"), then the Manager shall offer the Member(s) the opportunity to contribute the remaining Unpaid Contribution as a Preferred Loan. Effective as of the Fund Date the Percentage Interest shall be adjusted in the following manner: i) for all Members, each Member's total Capital Contribution shall be divided by the total Capital Contributions of all Members and multipled by seventy percent (70%); the percentage interest of the Manager shall thereafter be increased by (30%).

7.1 Tax Characterization and Additional Tax Terms. It is intended that the Company be characterized and treated as a *partners*hip for, and solely for, federal, state and local income tax purposes. For such purpose, (i) the Company shall be subject to all of the provisions of Subchapter K of Chapter 1 of Subtitle A of the Code, (ii) all references to a "Partner," to "Partners" and to the "Partnership" in this Agreement and in the provisions of the Code and Tax Regulations cited in this Agreement shall be deemed to refer to a Member, the Members and the Company, respectively. In addition, the following terms shall have the following meanings:

(a) "Adjusted Capital Account Deficit" shall mean, with respect to any Member, the deficit balance, if any, in such Member's Capital Account as of the end of the relevant Fiscal Year, after giving effect to the following adjustments: (i) credit to such Capital Account the minimum gain chargeback that such Member is deemed to be obligated to restore pursuant to the penultimate sentences of Sections 1.704-2(g)(1) and 1.704-2(i)(5) of the Tax Regulations; and (ii) debit to such Capital Account the items described in Sections 1.704-1(b)(2)(ii)(d)(4), 1.704-1(b)(2)(ii)(d)(5), and 1.704-1(b)(2)(ii)(d)(6) of the Tax Regulations.

The foregoing definition of Adjusted Capital Account Deficit is intended to comply with the provisions of Section 1.704-1(b)(2)(ii)(d) of the Tax Regulations and shall be interpreted consistently therewith.

(b) "Code" shall mean the Internal Revenue Code of 1986.

(c) "Nonrecourse Deductions" has the meaning set forth in Section 1.704-2(b)(1) of the Tax Regulations.

(d) "Nonrecourse Liability" has the meaning set forth in Section 1.704-2(b)(3) of the Tax Regulations.

(e) "Partner Nonrecourse Debt" has the meaning set forth in Section 1.704-2(b)(4) of the Tax Regulations.

(f) "Partner Nonrecourse Debt Minimum Gain" means an amount, with respect to each Partner Nonrecourse Debt, equal to the Partnership Minimum Gain that would result if such Partner Nonrecourse Debt were treated as a Nonrecourse Liability, determined in accordance with Section 1.704-2(i)(3) of the Tax Regulations.

(g) "Partner Nonrecourse Deductions" has the meaning set forth in Sections 1.704-2(i)(1) and 1.704-2(i)(2) of the Tax Regulations.

(h) "Partnership Minimum Gain" has the meaning set forth in Sections 1.704-2(b)(2) and 1.704-2(d) of the Tax Regulations.

(i) "Profits and Losses" shall mean, for each Fiscal Year, an amount equal to the Company's taxable income or loss for such Fiscal Year, determined in accordance with Section 703(a) of the Code (for this purpose, all items of income, gain, loss, or deduction required to be stated separately pursuant to Section 703(a)(1) of the Code shall be included in taxable income or loss), with the following adjustments: (i) any income of the Company that is exempt from federal income tax and not otherwise taken into account in computing Profits or Losses pursuant to this Section 7.1(i) shall be added to such taxable income or loss; (ii) any expenditures of the Company described in Section 705(a)(2)(B) of the Code or treated as Section 705(a)(2)(B) of the Code expenditures pursuant to Section 1.704-1(b)(2)(iv)(i) of the Tax Regulations, and not otherwise taken into account in computing Profits or Losses pursuant to this Section 7.1(i), shall be subtracted from such taxable income or loss; (iii) in the event the Gross Asset Value of any Company asset is adjusted pursuant to the definition of Gross Asset Value, the amount of such adjustment shall be taken into account as gain or loss from the disposition of such asset for purposes of computing Profits or Losses for the Fiscal Year in which such adjustment occurs; (iv) gain or loss resulting from any disposition of property with respect to which gain or loss is recognized for Federal income tax purposes shall be computed by reference to the Gross Asset Value of the property disposed of, notwithstanding that the adjusted tax basis of such property differs from its Gross Asset Value; (v) in lieu of depreciation, amortization and other cost recovery deductions taken into account in computing Federal taxable income or loss, there shall be taken into account Depreciation for such Fiscal Year or other period; and (vi) notwithstanding any other provisions of this definition, any items which are specially allocated pursuant to Section 7.5 shall not be taken into account in computing Profits or Losses. Nevertheless, such items shall be taken into account in adjusting Capital Accounts pursuant to Section 7.2 hereof. The amounts of the items of Partnership income, gain, loss, or deduction available to be specially allocated pursuant to Section 7.5 shall be determined by applying rules analogous to those set forth in clauses (i) through (iii) in this section.

(j) "Tax Regulations" shall mean the federal income tax regulations promulgated by the United States Treasury Department under the Code as such Tax Regulations may be amended from time to time. All references herein to a specific section of the Tax Regulations shall be deemed also to refer to any corresponding provision of succeeding Tax Regulations.

7.2 Capital Account. A separate Capital Account shall be maintained for each Member throughout the term of the Company in accordance with the rules of Section 1.704.1(b)(2)(iv) of the Tax Regulations as in effect from time to time, and, to the extent not inconsistent therewith, to which the following provisions apply: (a) to each Member's Capital Account there shall be credited (i) the amount of money contributed by such Member to the Company (including liabilities of the Company assumed by such Member as provided in Section 1.704-1(b)(2)(iv)(c) of the Tax Regulations); (ii) the Gross Asset Value of any property contributed to the Company by such Member (net of liabilities secured by such contributed property that the Company is considered to assume or take subject to under Section 752 of the Code); and (iii) such Member's share of Profits and items of income and gain; (b) to each Member's Capital Account there shall be debited (i) the amount of money distributed to such Member by the Company (including liabilities of such Member assumed by the Company as provided in Section 1.704-1(b)(2)(iv)(c) of the Tax Regulations) other than amounts which are in repayment of debt obligations of the Company to such Member; (ii) the Gross Asset Value of property distributed to such Member (net of liabilities secured by such distributed property that such Member is considered to assume or take subject to under Section 752 of the Code); and (iii) such Member's share of Losses or items of loss or deduction; (c) the Capital Account of a transferee Member shall include the appropriate portion of the Capital Account of the Member from whom the transferee Member's interest was obtained; (d) in determining the amount of any liability, there shall be taken into account Section 752(c) of the Code and any other applicable provisions of the Code and Tax Regulations.

The foregoing provisions and the other provisions of this Agreement relating to the maintenance of Capital Accounts are intended to comply with Section 1.704-1(b) of the Tax Regulations, and shall be interpreted and applied in a manner consistent with such Tax Regulations. In the event the Tax Matters Partner shall determine that it is prudent to modify the manner in which the Capital Accounts, or any debits or credits thereto (including, without limitation, debits or credits relating to liabilities that are secured by contributed or distributed property or that are assumed by the Company or any Member), are computed in order to comply with such

Tax Regulations, the Tax Matters Partner may make such modification, provided that it is not likely to have a material effect on the amounts distributable to any Member pursuant to Section 10 hereof upon the dissolution of the Company. The Tax Matters Partner also shall (i) make any adjustments that are necessary or appropriate to maintain equality between the Capital Accounts of the Members and the amount of Company capital reflected on the Company's balance sheet, as computed for book purposes, in accordance with Section 1.704-1(b)(2)(iv)(g) of the Tax Regulations and (ii) make any appropriate modifications in the event unanticipated events might otherwise cause this Agreement not to comply with Section 1.704-1(b) of the Tax Regulations. The decisions made by the Tax Matters Partner shall be made only after consultation with the Members who are not the Tax Matters Partner. The Tax Matters Partner shall have no liability whatsoever to the Company or to any Member with respect to any Tax Related Claims (as defined below). The Members who are not the Tax Matters Partner and the Company shall indemnify and hold harmless, the Tax Matters Partner from and against all claims, liabilities, losses, actual damages, costs, fines, penalties and interest ("Tax Related Claims") that result from a decision of the Tax Matters Partner made in good faith. Without limiting other circumstances establishing the Tax Matter Partners's good faith and reasonable belief, the Tax Matter Partner shall be deemed to have satisfied the foregoing conditions with respect to Tax Related Claims if the Tax Matters Partner consulted with a tax specialist, including without limitation, an accountant.

7.3 No Obligation to Restore Deficit Balance. Except as required by law, no Member shall be required to restore any deficit balance in its Capital Account.

7.4 Distributions of Capital; Successors. A Member shall not be entitled to earn interest on its capital, withdraw any part of its Capital Account or to receive any distribution from the Company, except as specifically provided in the Agreement, and no Member shall be entitled to make any capital contribution to the Company other than the Capital Contribution. Any Member who shall receive an interest in the Company or whose interest in the Company shall be increased by means of a transfer to it of all or part of the interest of another Member, shall have a Capital Account with respect to such interest initially equal to the Capital Account with respect to such interest of the Member from whom such interest is acquired except as otherwise required to account for any step up in basis resulting from a termination of the Company under Section 708 of the Code by reason of such interest transfer.

7.5 Profits, Losses and Allocable Shares of Tax Items. Losses for any taxable year shall be allocated based on each members Capital Account. Profits for any taxable year shall be allocated to the Members in a manner such that the Capital Account of each Member, immediately after giving effect to such allocation is, as nearly as possible, equal (proportionately) to the amount of the distribution that would be made to such Member if (A) the Company were dissolved and terminated; (B) the affairs of the Company were wound up and each Company asset was sold for cash equal to its Gross Asset Value, (C) all Company liabilities were satisfied and (D) the net assets of the Company were distributed to the Members in accordance with Section 10.1 in the order and priority set forth in Section 8.1 immediately after giving effect to such allocation. The following special allocations will be made in the following order and priority before allocations of Profits and Losses: (i) if there is a net decrease in Partnership Minimum Gain during any taxable year or other period for which allocations are made, before any other allocation under this Agreement, each Member will be specially allocated items of Company income and gain for that period (and, if necessary, subsequent periods) in proportion to, and to the extent of, an amount equal to such Member's share of the net decrease in Partnership minimum Gain during such year determined in accordance with Regulations Section 1.704-2(g)(2). The items to be allocated will be determined in accordance with Regulations Section 1.704-2(g). This Section 7.5 is intended to comply with the Partnership Minimum Gain chargeback requirements of the Regulations, will be interpreted consistently with the Regulations and will be subject to all exceptions provided therein; (ii) notwithstanding any other provision of this Section 7.5 (other than the special allocations provided herein above which shall be applied first), if there is a net decrease in Partner Nonrecourse Debt Minimum Gain with respect to a Partner Nonrecourse Debt during any taxable year or other period for which allocations are made, any Member with a share of such Partner Nonrecourse Debt Minimum Gain (determined under Regulations Section 1.704-2(i)(5)) as of the beginning of the year will be specially allocated items of Company income and gain for that period (and, if necessary, subsequent periods) in an amount equal to such Member's share of the net decrease in the Partner Nonrecourse Debt Minimum Gain during such year determined in accordance with Regulations Section 1.704-2(g)(2). The items to be so allocated will be determined in accordance with Regulations Section 1.704-2(g). This Section 7.5 is intended to comply with the Partner Nonrecourse Debt Minimum Gain chargeback requirements of the Regulations, will be interpreted consistently with the Regulations and will be subject to all exceptions provided therein; (iii) a Member shall not be allocated items of loss or deduction to the extent such allocation would cause or increase an Adjusted Capital Account Deficit for such Member as of the close of any Fiscal Year. Any items of loss and deduction not allocated to a Member under this Section 7.5 shall be allocated first, to the remaining Members that do not have an Adjusted Capital Account Deficit in proportion to, and to the extent of, the amount that can allocated to such Members with creating an Adjusted Capital Account Deficit with respect to such Members, and thereafter to the Members in accordance with applicable Regulations. A Member who unexpectedly receives any adjustment, allocation or distribution described in Regulations Sections 1.704-l(b)(2)(ii)(d)(4), (5) or (6) will be specially allocated items of Company income and gain in an amount and manner sufficient to eliminate, to the extent required by the Regulations, the Adjusted Capital Account Deficit of the Member as quickly as possible. This Section 7.5 is intended to comply with the qualified income offset requirement of Regulations Section 1.704-1(b)(2)(ii)(d) and shall be interpreted and applied consistently therewith; (iv) Nonrecourse Deductions for any taxable year or other period for which allocations are made will be allocated among the Members in proportion to their respective Percentage Interests in the Company; (v) notwithstanding anything to

the contrary in this Agreement, any Partner Nonrecourse Deductions for any taxable year or other period for which allocations are made will be allocated to the Member who bears the economic risk of loss with respect to the Partner Nonrecourse Debt to which the Partner Nonrecourse Deductions are attributable in accordance with Regulations Section 1.704-2(i); (vi) to the extent an adjustment to the adjusted tax basis of any Company asset under Code Sections 734(b) or 743(b) is required to be taken into account in determining Capital Accounts under Regulations Section 1.704-1(b)(2)(iv)(m), the amount of the adjustment to the Capital Accounts will be treated as an item of gain (if the adjustment increases the basis of the asset) or loss (if the adjustment decreases the basis), and the gain or loss will be specially allocated to the Members in a manner consistent with the manner in which their Capital Accounts are required to be adjusted under Regulations Section 1.704-1(b)(2(iv)(m); (vii) the special allocations set forth in Section 7.5 (the "Regulatory Allocations") are intended to comply with certain requirements of Regulations Sections 1.704-1(b). The Regulatory Allocations may affect results which would be inconsistent with the manner in which the Members intend to divide Company distributions. Accordingly, notwithstanding anything in this Agreement to the contrary (other than this Section 7.5) the Members shall divide other allocations of items of Profits, Losses, income, gain loss and deduction in subsequent taxable years so that the net amount of the Regulatory Allocations and Profits, Losses and other items to each Member shall be equal to the net amount that would have been allocated to each such Member if the Regulatory Allocations had not occurred. The Members shall accomplish this result in any reasonable manner that is consistent with Code Section 704 and the related Regulations. In accordance with Code Section 704(c) and the related Regulations, income, gain, loss and deduction with respect to any property contributed to the capital of the Company, solely for tax purposes, will be allocated among the Members so as to take account of any variation between the adjusted basis to the Company of the property for federal income tax purposes and the initial Gross Asset Value of the property. Any elections or other decisions relating to allocations under this Section 7.5 will be made in any manner that the Members determine reasonably reflects the purpose and intention of this Agreement. If the Gross Asset Value of any Company property is adjusted as provided in the definition thereof, subsequent allocations of income, gain, loss and deduction with respect to such asset shall, solely for tax purposes, take account of any variation between the adjusted basis of such asset for federal income tax purposes and its Gross Asset Value in the same manner as under Code Section 704(c) and the related Regulations. The Manager may select any reasonable method or methods for making such allocations for each item of property whose Gross Asset Value is adjusted. Allocations under this Section 7.5 are solely for purposes of federal, state and local taxes and will not affect, or in any way be taken into account in computing, any Member's Capital Account or share of Profits, Losses or other items or distributions under any provision of this Agreement. Allocations pursuant to this Section 7.5 are solely for tax purposes and shall not affect, or in any way be taken into account in computing, any Member's Capital Account or share of Profits, Losses or other items pursuant to any provision of this Agreement. Members shall be bound by the provisions of this Section 7.5 in reporting their shares of Company income and loss for income tax purposes.

8.1 Available Cash Distributions. Subject to the other provisions of this Section 8 and after all Preferred Loans or any other Member loans have been repaid (if any), Available Cash shall be distributed to the Members on quarterly or more frequent basis (as reasonably determined by the Manager) in such amounts as the Manager may reasonably determine. Manager shall not unreasonably withhold Available Cash that is not being reasonably reserved to execute or maintain the Company's asset. No distribution shall be declared and paid if the declaration or payment of such distribution would violate the LLC Act or any other applicable laws. Distributions shall be made in the following order of priority:

(a) Pro rata in accordance with each Member's Percentage Interest.

8.2 Net Proceeds Distributions. Subject to the other provisions of this Section 8 and after all Preferred Loans or any other Member loans have been repaid (if any), Net Proceeds shall be distributed to the Members at such times and in such amounts as the Manager may reasonably determine. Manager shall not unreasonably withhold Net Proceeds that is not being reasonably reserved to execute or maintain the Company's asset. No distribution shall be declared and paid if the declaration or payment of such distribution would violate the LLC Act or any other applicable laws. Distributions shall be made in the following order of priority:

(a) First, pari passu, to all Members in proportion to to each Member's Unreturned Capital until each Member has received distributions pursuant to Section 8.1(a) in an amount that results in each Member's Unreturned Capital equaling zero; and

(b) Thereafter, pro rata in accordance with their respective Percentatage Interests.

8.3 Tax Distributions. Notwithstanding the foregoing and to the extent of Available Cash and Net Proceeds, the Manager shall, at the request of the Members, have the ability to cause the Company to make such minimum annual distributions as shall be necessary to enable the Members to pay their U.S. federal, state and local income taxes on the cumulative net taxable income, if any, allocated to them pursuant to this Agreement for all Fiscal Years or other periods (taking into account allocations of Company taxable income or loss for prior Fiscal Years or other periods), at an assumed combined marginal tax rate equal to the sum of the highest U.S. federal, state and local income tax rates applicable to any Member (or any member, partner, shareholder or other equity holder of a Member that is a flow-through or disregarded entity for income tax purposes) from time to time (which combined tax rate shall apply to each other Member irrespective of their actual tax rate). Anything to the contrary contained in this Agreement notwithstanding, after taking into

account tax distributions made pursuant to the previous sentence, subsequent distributions to the Members pursuant to Section 8.1(c) and Section 10.1 shall be adjusted as and if necessary to ensure that, over the period of time since the date of this Agreement, the aggregate cash distributed to a Member under this Agreement shall be equal to the amount to which such Member would have been entitled had there been no tax distributions pursuant to the previous sentence.

8.4 Over-distributions. The Manager may cause the Company's accountants to determine whether there has been an over-distribution to any Member (whether occurring by reason of a mistake or as a result of recomputing, cumulatively over the term of the Company, distributions to which the Members are entitled after applying all applicable provisions of this Agreement for all periods) at the following times: (i) within one hundred twenty (120) days after the end of each Fiscal Year, and (ii) cumulatively during the term of the Company within one hundred twenty (120) days after the sale, exchange or other disposition of any capital asset by the Company. Any over-distribution to any Member in respect of either a Fiscal Year or during the term of this Agreement shall be repaid by such Member to the Company and distributed to the Member(s) which has received an under-distribution not later than thirty (30) days after any Member has given notice thereof to the other Members, which notice shall be given as soon as is practicable after the end of such Fiscal Year or such disposition of the capital asset. If not paid within thirty (30) days of such notice, the amount of any over-distribution shall thereafter accrue interest at the rate of ten percent (10%). Such returned over-distribution and any interest paid with respect thereto as provided in this Section 8.4 shall be promptly distributed to the Company, pro rata, to the Member(s) receiving any under-distribution to the extent necessary to eliminate such under-distribution. Notwithstanding anything to the contrary in this Agreement, the obligation of the Member(s) receiving an over-distribution to return such over-distribution to the Company and any interest thereon shall constitute a recourse obligation of such Member, and with respect thereto the Company and the Member receiving an under-distribution shall have full recourse against the Member which received such over-distribution (but not the partners, members and/or shareholders of such Member). Any over-distribution returned to the Company shall have the same character as the character of the corresponding earlier distribution to the Member which received such over-distribution. To the extent (and when) a Member repays amount to the Company that were treated by the Company as having been distributed to such Member's invested capital, such repayments shall be treated as Capital Contributions of such Member when made by such Member for all purposes of this Agreement.

9.1 Transfers. No Member shall transfer, convey, sell, pledge, hypothecate, encumber, assign or otherwise dispose of (collectively, a "Transfer") all or any portion of its Membership Interest, except in strict compliance with the provisions of this Section 9. Any purported Transfer in violation of this Section 9 shall be void ab initio, shall not bind the Company and shall be deemed an irrevocable offer made by the Member whose Transfer is being voided to the Company to redeem such Membership Interest by payment of the amount of such Member's Unreturned Capital. The Member whose Transfer is being voided shall indemnify and hold the Company and the other Members harmless from and against any federal, state or local income taxes, and/or other taxes and other damages arising as a result of, or caused directly or indirectly by, such voided Transfer. Each of the Members hereby acknowledges and agrees that, subject to the provisions of this Section 9.1, it will not, without the prior written approval of the Majority Members, Transfer any portion of its Membership Interest to any Person, it being agreed that such approval may be withheld for any reason or no reason. Notwithstanding the foregoing and subject to compliance with the remaining provisions of this Section 9, no approval of the Members shall be required for a Transfer (i) by a Member to any of that Member's Affiliates of all or any part of such Member's right to receive distributions from the Company pursuant to Sections 8.1 or 10.2, (ii) if the proposed transferor is a natural Person, by succession or testamentary disposition upon his death or (iii) if the proposed transferor is a natural Person, to a family member, provided that such Transfer does not result in a change in the controlling Person of such Member. Any Person who receives all or any portion of the Membership Interest of a Member pursuant to a Transfer in accordance with this Section 9, other than a Person who receives only all or any part of a Member's right to receive distributions from the Company (such Person being hereinafter referred to as a "Transferee") may become a new Member of the Company but only upon the occurrence of the following conditions and compliance with the following provisions: (a) the Majority Members (as detrmined while excluding the transferring Member) shall have approved such Transferee as a Member (unless as otherwise provided in this Agreement) and entered such Transferee as a Member on the books and records of the Company; (b) such Transferee shall have paid all reasonable legal fees of the Company and any filing costs in connection with its admission as a Member; (c) such Transferee shall accept, ratify and agree to be bound by this Agreement and all actions duly taken by the Company pursuant to the terms and provisions of this Agreement by the Company prior to the date when such Transferee became a new Member and, at the request of the Majority Members (as detrmined while excluding the transferring Member), such new Member shall deliver a written acknowledgement to the Company to such effect; (d) such Transferee shall deliver to the Company a duplicate original of the instrument evidencing such Transfer, duly executed and acknowledged by the transferor Member, which instrument shall be in form and substance reasonably acceptable to the Majority Members (as detrmined while excluding the transferring Member); (e) at the request of the Majority Members (as detrmined while excluding the transferring Member), the Transferee shall deliver a letter addressed to the Company in which the Transferee shall make such representations, warranties and covenants as may be reasonably requested by the Majority Members (as detrmined while excluding the transferring Member) including that such Transfer was made in accordance with all applicable laws and regulations and relating to such Transferee's net worth, sophistication and investment intent; and (f) at the request of the Majority Members (as detrmined while excluding the transferring Member), the Transferee shall provide an opinion of counsel reasonably satisfactory to the Majority Members (as detrmined while excluding the transferring Member) which opinion shall state that with respect to such Transfer: (i) registration is not required under the Securities Act of 1933, as amended, (ii) such Transfer does not violate any applicable federal or state securities, real estate syndication or comparable laws, and (iii) such Transfer

will not be subject to, or such Transfer, when aggregated with prior Transfers in accordance with applicable law, will not result in, the imposition of any federal, state, city or local transfer taxes, including, without limitation, any transfer gains taxes, unless such transferor Member pays such taxes. There shall be no right of any other Member to participate in any Transfer by a Member permitted under this Agreement. Each Member shall indemnify, defned and hold the Company and each Member harmless from any Claims in any way arising from the failure of a Transfer of any interest in the Company (including any Transfer of an interest in any partners, members or shareholders of the indemnifying Member, or the partners, members or shareholders therein, and regardless of whether occurring before or after the date of this Agreement)to comply with all applicable federal and state securities laws, including all registration or qualification requirements and anti-fraud requirements, or the impact of such Transfer upon compliance of the Company and its Members with those securities laws in connection with any previous Transfer of an interest in the Company. Should the preceding indemnity be unenforceable to any extent, then, to such extent, the Member otherwise required to so indemnify the Company and the other Members shall be obligated to contribute to any loss, liability, cost or expense resulting from the actions, omissions or events set forth in the above indemnification to the extent of its responsibility therefor, as determined by the trier of fact.

10.1 Dissolution and Termination. The Company shall be liquidated only upon the occurrence of any of the following: (i) the sale or other disposition of all or substantially all of the Company's assets and receipt of the final payment of any installment obligation received as a result of any such sale or disposition; (ii) any event which makes it unlawful for the Company's business to be continued; or (iii) any other event not prohibited by this Agreement that would cause the dissolution of the Company under the Act. Without limitation on the other provisions hereof, neither the assignment of all or any part of a Member's interest in the Company permitted hereunder nor the admission of a new member shall cause or result in the dissolution of the Company. Except as otherwise provided in this Agreement, each Member agrees that, without the consent of the Majority Members, a Member may not retire or withdraw from or cause a voluntary dissolution of the Company. Upon dissolution, the Company shall wind up its affairs and shall be liquidated and a certificate of cancellation of the Company's Articles shall be filed as required by law, as well as any and all other documents required to effectuate the dissolution and termination of the Company. In the event of the dissolution of the Company, its business activities shall be wound up, its debts and liabilities shall be paid and its remaining assets, if any, shall be distributed as set forth in Section 10.1. Dissolution shall be effective on the date of the occurrence of an event set forth in Section 10.1, but the Company shall not terminate until all of the Company assets have been liquidated and the proceeds distributed in accordance with the provisions of this Section 10. Notwithstanding the dissolution of the Company, prior to the termination of the Company as aforesaid, the business of the Company and the affairs of the Members as such, shall continue to be governed by this Agreement. Upon termination of the Company, the Manager shall proceed to the liquidation of the Company, and the proceeds of such liquidation shall be applied and distributed in the following order of priority: (a) to the payment of expenses of the liquidation; (b) to the payment of debts and liabilities of the Company, in order of priority as provided by law, other than debts and liabilities owed to Members; (c) to the setting up of any reserves that the Manager shall determine are reasonably necessary for any contingent or unforeseen liabilities or obligations of the Company; (d) to the payment of debts and liabilities of the Company owed to Members including any outstanding Member loans; and (e) to the Members in accordance with Section 8.1. The Members shall look solely to the assets of the Company for the return of their respective investments, and if the property of the Company remaining after the payment or discharge of the debts and liabilities of the Company is insufficient to return such investment, they shall have no recourse therefore (upon dissolution or otherwise) against any other Member or the Manager. As expeditiously as possible the Manager shall pay out of the Company's funds all Company liabilities, establish the reserves and make the distributions provided for in Section 10.1. Except as agreed by the Majority Members, no Member shall have the right to demand or receive property other than cash upon liquidation, and the Manager shall, in any event, have the power to sell Company assets for cash as necessary to provide for the payment of all Company liabilities and the establishment of reserves. All saleable assets of the Company may be sold in connection with any liquidation at public or private sale, at such price and upon such terms as the Majority Members, in their sole and absolute discretion, deems advisable. Although the Company has no obligation to offer to sell any of its property to the Manager, any other Member or Affiliates of the Members, such parties may bid on and purchase any Company assets so offered for sale by the Company, though such sale must be approved by the Majority Members. If the Manager determines that an immediate sale of part or all of the Company assets would cause undue loss to the Members, then the Manager or such trustee or liquidator may either (i) defer liquidation of and withhold from distribution for a reasonable time any assets of the Company (except those necessary to satisfy the Company's current obligations) or (ii) distribute assets to the Members in kind.

11.1 Amendments. This Agreement may be amended, in writing, from time to time by agreement of the Members; provided, that no amendment shall be made to this Agreement, which amendment decreases the interest of a Member, modifies the distributions provided for in this Agreement or increases the liabilities or obligations of a Member under this Agreement without such Member's consent. Manager shall deliver any amendments to this Agreement to each Member. In making any amendments, there shall be prepared and filed by the Manager such documents and certificates as shall be required to be prepared and filed.

12.1 Further Assurances. Each party to this Agreement agrees to execute, acknowledge, deliver, file and record such further certificates, amendments, instruments and documents, and to do all such other acts and things, as may be required by law or as, in the reasonable opinion of the Manager, may be necessary or advisable to carry out the intent and purpose of this Agreement.

12.2 Notices; Procedures for Approvals. All notices given pursuant to this Section 12.2 shall be deemed to have been given or served on receipt or rejection, as applicable. Unless otherwise specified in this Agreement, all notices, demands, elections, requests or other communications that any party to this Agreement is required or entitled to give hereunder shall be in writing and shall be given (i) by overnight United States mail or other recognized overnight courier or (ii) by personal delivery, addressed as follows: (a) to the Company at 41 Madison Ave, Flr 35, New York, NY 10010 or at such other address as may be designated by the Manager upon written notice to all of the Members; and (b) to the Members at their respective addresses set forth on Exhibit A attached hereto. Each Member shall have the right to designate another address or change in address by written notice to the Company in the manner prescribed in this Section 12.2. For those matters which require the approval by any Member to any action pursuant to this Agreement, unless otherwise provided in this Agreement the Manager or the appropriate Member, as the case may be, shall send a notice to the Member whose approval is being sought, which notice shall describe in reasonable detail the action proposed to be taken, and such Member shall notify the Manager or the appropriate Member in writing of its approval or disapproval within the appropriate number of days pursuant to the terms of this Agreement after notice from the Manager or the appropriate Member is received (or, if no time period is specified herein, within ten Business Days after a request therefor is received). Each Member shall have the right from time to time to change its address and specify as its address any other address within the United States after giving ten days' prior written notice thereof to the Manager and the other Members.

12.3 Powers of Attorney. Subject to the limitations set forth in this Agreement, each Member, including any Members admitted pursuant to Section 9.1, by executing this Agreement, hereby irrevocably constitutes and appoints the Manager, with full power of substitution, as its true and lawful attorney-in-fact, and empowers and authorizes such attorney, in its name, place and stead to make, execute, deliver, acknowledge, swear to, file and record in all necessary or appropriate places such documents as may be necessary or appropriate to carry out this Agreement, including but not limited to (a) all certificates and other instruments (including counterparts of this Agreement), and any amendments (including counterparts thereof), which said attorney-in-fact deems appropriate to form, qualify or continue the Company as a limited liability company (or a company in which the Members will have limited liability comparable to that provided by the LLC Act) in the jurisdictions in which the Company may conduct business or in which such formation, qualification or continuation is, in the opinion of said attorney-in-fact, necessary or desirable to protect the limited liability of the Members; (b) all amendments to the Articles as now or hereafter amended, and such other certificates, instruments or documents as may be deemed appropriate by said attorney-in-fact or required to reflect (i) a change, to the extent permitted herein, of name or the principal place of business of the Company or of the name or address of any Member, (ii) any previously agreed to changes in or amendment of this Agreement, (iii) the admission of additional Members or substituted Members or (iv) the redemption of the Membership Interest of one or more Members; and (c) all conveyances and other instruments which said attorney-in-fact deems appropriate to reflect the dissolution and termination of the Company. The grant by the Members to the Manager of the foregoing power of attorney shall be deemed to be a power coupled with an interest and shall survive the bankruptcy, death, adjudication of incompetence or insanity of the grantor thereof and shall survive the delivery of an assignment by any Member of the whole or any portion of its interest; except that, where the assignee thereof has been admitted to the Company as a new Member with respect to the whole of the assigning Member's interest, the power of attorney shall survive the delivery of such assignment for the sole purpose of enabling the aforesaid attorney-in-fact to execute, acknowledge, and file any instrument necessary to effect such substitution.

12.4 Counterparts. This Agreement may be executed in two or more counterparts, each of which shall constitute an original and all of which, when taken together, shall constitute one Agreement. A signature on this Agreement transmitted by facsimile or by Email shall be deemed the equivalent of an original ink signature for all purposes. The parties acknowledge and agree that each signature page is a separate signature page and no Member has the right to see, access or view the signature page of any other Member unless such Member is also a Manager; provided, however, each Member shall have the right to know each Member's Capital Contribution and Percentage Interest

12.5 Governing Law. This Agreement shall be construed in accordance with the laws of the State of Delaware without application of conflict of law principles.

12.6 No Interest in Company Property; Partition. No Member has any interest in specific property of the Company. The Members hereby irrevocably and unconditionally agree that no Member or any successor-in-interest to any Member shall have the right, while this Agreement remains in effect, to have the property of the Company partitioned, or to file a complaint or institute any proceeding at law or in equity to have the property of the Company partitioned, and each Member, on behalf of itself, its successors, representatives, heirs and assigns, hereby irrevocably and unconditionally waives any such right.

12.7 Invalidity. Every provision of this Agreement is intended to be severable. The invalidity and unenforceability of any particular provision of this Agreement in any jurisdiction shall not affect the other provisions hereof, and this Agreement shall be construed in all respects as if such invalid or unenforceable provision were omitted.

12.8 Successors and Assigns. This Agreement shall be binding upon the parties hereto and their respective successors, executors,

administrators, legal representatives, heirs and permitted assigns and shall inure to the benefit of the parties hereto and, except as otherwise provided herein, their respective successors, executors, administrators, legal representatives, heirs and permitted assigns.

12.9 Entire Agreement. This Agreement supersedes all prior agreements among the parties with respect to the subject matter hereof and contains the entire agreement among the parties with respect to such subject matter. This instrument may not be amended, supplemented or discharged, and, except as otherwise provided in Section 11.1, no provisions hereof may be modified or waived, except by an instrument in writing signed by the Members and, in the case of an amendment, modification or supplement, in compliance with Section 11.1. No waiver of any provision hereof by any party hereto shall be deemed a waiver by any other party nor shall any such waiver by any party be deemed a continuing waiver of any matter by such party. No amendment, modification, supplement, discharge or waiver hereof or hereunder shall require the consent of any person not a party to this Agreement.

12.10 Publicity. The Members agree that they will issue no press release or other similar statement to the press nor endorse any publication using any other Member's name (or that of its Affiliates) without the prior written approval of such Member, which approval may be withheld in such Member's sole discretion.

12.11 No Third Party Beneficiaries. This Agreement is not intended and shall not be construed as granting any rights, benefits or privileges to any Person who is not a Member.

12.12 Prevailing Party Costs; Arbitration and Waiver of Jury Trial. In the event of a dispute between the Members arising out of this Agreement, the prevailing party shall be entitled to seek and receive from the non-prevailing party all of the prevailing party's costs, fees (including without limitation reasonable attorneys' fees) and expenses incurred by the prevailing party related to such dispute. Any dispute, claim or controversy arising out of or relating to this Agreement or to the breach, termination, enforcement, interpretation or validity thereof shall be determined by arbitration in New York, NY before one arbitrator. The arbitration shall be administered by JAMS pursuant to its Streamlined Arbitration Rules and Procedures. Provided, however, the arbitrator shall enter findings of fact and conclusions of law. If JAMS is unwilling or unable to serve as the provider of arbitration or to enforce any provision of this arbitration clause, the Members shall agree upon another arbitration organization with similar procedures to serve as the provider of arbitration. Judgment on the award may be entered in any court having jurisdiction. This clause shall not preclude parties from seeking provisional remedies in aid of arbitration from a court of appropriate jurisdiction. The arbitrator may, in the award, allocate all or part of the costs of the arbitration, including the fees of the arbitrator and the reasonable attorney's fees of the prevailing party. The filing of a court action does not constitute a waiver of the right of any party thereafter to require arbitration. WITH RESPECT TO ANY DISPUTE ARISING UNDER OR IN CONNECTION WITH THIS AGREEMENT AS TO WHICH LEGAL ACTION OCCURS NOTWITHSTANDING THE PROVISIONS OF SECTION 12.13, EACH MEMBER AND THE MANAGER HEREBY IRREVOCABLY WAIVES ALL RIGHTS IT MAY HAVE TO DEMAND A JURY TRIAL. THIS WAIVER IS KNOWINGLY, INTENTIONALLY, AND VOLUNTARILY MADE BY THE MEMBERS AND THE MANAGER AND EACH MEMBER AND MANAGER ACKNOWLEDGES THAT NONE OF THE OTHER MEMBERS OR MANAGER NOR ANY PERSON ACTING ON BEHALF OF THE OTHER PARTIES HAS MADE ANY REPRESENTATION OF FACT TO INDUCE THIS WAIVER OF TRIAL BY JURY OR IN ANY WAY TO MODIFY OR NULLIFY ITS EFFECT. THE MEMBERS AND MANAGER EACH FURTHER ACKNOWLEDGE THAT IT HAS BEEN REPRESENTED (OR HAS HAD THE OPPORTUNITY TO BE REPRESENTED) IN THE SIGNING OF THIS AGREEMENT AND IN THE MAKING OF THIS WAIVER BY INDEPENDENT LEGAL COUNSEL, SELECTED OF ITS OWN FREE WILL, AND THAT IT HAS HAD THE OPPORTUNITY TO DISCUSS THIS WAIVER WITH COUNSEL. THE MEMBERS AND MANAGER EACH FURTHER ACKNOWLEDGE THAT IT HAS READ AND UNDERSTANDS THE MEANING AND RAMIFICATIONS OF THIS WAIVER PROVISION.

12.13 Acknowledgement by Members. Each Member acknowledges the following: (a) it is familiar with the business proposed to be conducted by the Company; (b) it has been advised that its interest in the Company may not be sold, transferred, or otherwise disposed of except as provided herein; (c) it understands that its interest in the Company has not been registered under the Securities Act of 1933, as amended (the "Securities Act"), or any State securities laws, in reliance on an exemption for private offerings or the fact that it is not a security and if its interest in the Company is a security, such Member may not be able to resell it unless it is registered under the Securities Act and applicable State securities laws or unless an exemption from such registration is available; (d) it is a "sophisticated investor" with substantial prior experience in high-risk business investments and is aware of and familiar with the risks associated with a private limited liability company and would qualify as an "accredited investor" as such is defined in Rule 501 of Regulation D, as enacted pursuant to Sections 3(b) and 4(2) of the Securities Act; (e) it is acquiring its interest in the Company for its own account, for investment only and with no present intention of distributing, reselling, pledging, or otherwise disposing of its interest; and (f) that it is familiar with the type of investment which its interest in the Company constitutes and has reviewed the acquisition of such interest with its tax and independent legal counsel and investment representatives to the extent it deems necessary.

12.14 Non-Business Days. Whenever action must be taken (including the giving of notice or the delivery of documents) under this Agreement during a certain period of time or by a particular date that ends or occurs on a non-Business Day, then such period or date

shall be extended until the immediately following Business Day.

12.15 No Drafting Presumption. In interpreting the provisions of this Agreement, no presumption shall apply against any Member that otherwise would operate against such Member by reason of such document having been drafted by such Member or at the direction of such Member or an Affiliate of such Member.

[SIGNATURE PAGE FOLLOWS]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day and year first above written.

October 30, 2017

By: EM LAMBERTON GP, LLC,
A Delaware limited liability company

MANAGER:

Charles Clinton
Charles Clinton

Marious Sjulsen
Marious Sjulsen

Exhibit A

MEMBERS, CAPITAL CONTRIBUTIONS AND PERCENTAGE INTERESTS

The initial Capital Contributions which have been funded by each Member and the Percentage Interest of each Member as of the Closing Date are as set forth below:

Name and Address of Member	**Initial Capital Contribution**	**Percentage Interest**
Charles Clinton, Manager 177 Congress St, Apt 1 Brooklyn, NY 10010	$3,765	20.00%
Marious Sjulsen, Manager 57 S Oxford St Apt 2 Brooklyn, NY 11217	$3,765	20.00%
T Three Partners, LLC 440 Park Ave New York, NY 10016	$110,000	50.77%
Jonathan More 845 UN Plaza, Apt 23D New York, NY 10017	$20,000	9.23%
TOTAL:	**$137,530**	**100.00%**